

TENTATIVE RULINGS

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TENTATIVE RULING

Date: 09/16/2026

Case #	Case Name	Tentative
01486818	Aguirre – Trust	TENTATIVE RULING Case: Aguirre – Trust 01486818 Calendar No: 1 Date: 09/16/26 MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORY 17.1 (ROA 115) Petitioner Steven M. Aguirre ("Petitioner") moves to compel Respondent Martin Campbell ("Respondent") to further respond to Form Interrogatory 17.1. (ROA 115.) Petitioner propounded the subject discovery on Respondent on 10/3/25 and received responses on 11/17/25. (ROA 67, Friedman Decl., ¶¶ 2-3.) On 12/24/25, Petitioner sent a meet and confer letter addressing the deficiencies in the subject discovery, proposing a mutual extension of deadlines to respond to discovery and file this motion, and requesting confirmation of the agreement for extensions. (Id. at ¶ 4; ROA 294, Duff Decl., ¶ 5.) Respondent did not respond or otherwise confirm an agreement to the extension. (ROA 309, Friedman Decl., at ¶ 8.) Consequently, Petitioner timely filed the instant motion on 1/2/26. (Id. at ¶ 9.) On 1/5/26, Respondent served a supplemental response to Form Interrogatory 17.1. (Duff Decl., ¶ 7, Ex. C.) Based on the foregoing, the motion to compel further response to Form Interrogatory 17.1 is DENIED as moot.

		The court DENIES both parties' request for monetary sanctions as it appears that issue raised in this motion could have been resolved without court intervention had counsel made a serious effort to meet and confer. Petitioner sent a single meet and confer letter after 6:00p.m. on Christmas Eve, knowing that the deadline to file the instant motion was January 2nd. Sending a single letter late in the relevant time period is not a sufficient effort to meet and confer. (See <i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 432-433.) Petitioner gave Respondent less than four business days, during the busy holiday season, to respond. Nonetheless, Respondent acknowledges receiving the letter on 12/24/26 and offers no reason for failing to confirm an agreement to the proposed extension of time. Moreover, Respondent failed to offer any justification for the insufficiency of the initial response to Form Interrogatory 17.1. Based on the foregoing, the court finds that the motion was neither made nor opposed with substantial justification. Further, counsel should be aware that, effective 1/1/26, discovery motions must be accompanied by a declaration showing that a good faith effort to meet and confer was made "in person, by telephone, or by videoconference" to informally resolve each issue. (Code Civ. Proc. §§ 2016.040 and 2023.010(h).) Counsel for Petitioner shall serve notice of this ruling.
01486818	Aguirre – Trust	TENTATIVE RULING Case: Aguirre – Trust 01486818 Calendar No: 1 Date: 09/16/26 MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION (ROA 111)